Pretrial Release Data Documentation

Overview

The Division of Technology & Court Research (DoTCR) created the Pretrial Release Data extract in response to Judiciary Law 216 (5) / Executive Law 837-U, requiring the Unified Court System (UCS), in conjunction with the Division of Criminal Justice Services (DCJS), to collect and publish data on pretrial release and detention. Additional fields have been added to this extract to make it more robust for researchers studying the bail reforms from the 2019 Criminal Justice Legislation. The de-identified data is available in a downloadable format on the UCS public website and updated every six months.

Included Court Populations

Only dockets with a top arraignment charge of a felony or misdemeanor are included. Data is provided through the most current complete six-month period. Data begin dates are as follows:

- State paid city and district courts starting in January 1st, 2020
- NYC Community Courts (Midtown and Redhook): complete data for arraignments after March 28th 2021
- Superior Courts (Supreme and County): complete after each court's UCMSLiveDate. Only arraignments occurring after the court's UCMSLiveDate can be considered complete. Prior to the UCMSLiveDate, each court determined which older cases would be converted into the new system and these will only provide partial information. Youth Part arraignments, which occur in the Superior Court, will be complete regardless of the "UCMSLiveDate".
- Town and Village courts starting in July 1st, 2023. The extract of the Town and Village courts is limited to the fields required by the legislation. The structural inflexibility of the existing case management system for the town and village courts limits OCA's ability to programmatically enforce complete data collection. This results in a higher rate of unknown values compared to the pretrial release data from the state-funded courts (the City, District, New York City Criminal, County, and Supreme Courts). The Office of Justice Court Support, which provides training and advice to the town and village courts, has partnered with the Office of Court Research and Technology to emphasize the critical importance of complete data entry in an ongoing effort to improve the quality of these reports. Cases pending in courts that have since been dissolved are now reflected within the records of the appropriate existing court.

Important Notes: Data will be refreshed every six months. The refresh will update with all new cases arraigned in the previous period, along with any updates to cases previously in the extract. For instance, an arraignment in the first extract might be disposed in an updated extract. The updated extract will now show all information for that case. Each row represents a unique, non-

identifiable defendant-docket. One case with multiple defendants will have multiple rows (co-defendants cannot be linked together). A defendant with multiple cases will have multiple rows (multiple dockets for one defendant cannot be linked together). Multiple dockets for the same arrest event can be linked through the arr_cycle_id.

Field Labels and Descriptions

Please refer to the Pretrial Release Data dictionary (Excel – Downloads File) for a description of OCA and DCJS variables for state paid courts.

Please refer to the Town & Village Data dictionary (Excel – Downloads File) for a description of the OCA and DCJS variables for the justice courts.

A Note on Variables: Disposition data reflects data entry up to the point that the OCA extract data is run and sent to DCJS. This will usually occur between one and three months after the end of the data collection period.

Prior Arrest / Rearrest

Criminal history data are provided by DCJS. Criminal history data are limited to arrests for misdemeanor and felony offenses that require fingerprints to be taken. Cases arrested for non-fingerprintable misdemeanor charges are not included. Charges that require fingerprints to be taken can be found in the Coded Law File on the DCJS website (External – Opens new page). The "Printable" field indicates whether the charge requires fingerprints to be taken.

DCJS variables with a missing value indicate that the respective case has no matching records present within the DCJS criminal history repository, not that the case has no criminal history.

Judiciary Law 216(5)

5. THE CHIEF ADMINISTRATOR OF THE COURTS, IN CONJUNCTION WITH THE DIVISION OF CRIMINAL JUSTICE SERVICES, SHALL COLLECT DATA AND REPORT EVERY SIX MONTHS REGARDING PRETRIAL RELEASE AND DETENTION. SUCH DATA AND REPORT SHALL CONTAIN INFORMATION CATEGORIZED BY GENDER, RACIAL AND ETHNIC BACKGROUND; REGARDING THE NATURE OF THE CRIMINAL OFFENSES, INCLUDING THE TOP CHARGE OF EACH CASE; THE NUMBER AND TYPE OF CHARGES IN EACH DEFENDANT'S CRIMINAL RECORD; THE NUMBER OF INDIVIDUALS RELEASED ON RECOGNIZANCE; THE NUMBER OF INDIVIDUALS RELEASED ON NON-MONETARY CONDI TIONS, INCLUDING THE CONDITIONS IMPOSED; THE NUMBER OF INDIVIDUALS COMMITTED TO THE CUSTODY OF A SHERIFF PRIOR TO TRIAL; THE RATES OF FAIL URE TO APPEAR AND REARREST; THE OUTCOME OF SUCH CASES OR DISPOSITIONS; THE LENGTH OF THE PRETRIAL DETENTION STAY AND ANY OTHER SUCH INFORMATION AS THE CHIEF ADMINISTRATOR AND THE DIVISION OF CRIMINAL JUSTICE SERVICES MAY FIND NECESSARY AND APPROPRIATE. SUCH REPORT SHALL AGGREGATE THE DATA COLLECTED BY COUNTY; COURT, INCLUDING CITY, TOWN AND VILLAGE COURTS; AND JUDGE. THE DATA SHALL BE DISAGGREGATED IN ORDER TO PROTECT THE IDENTITY OF INDIVIDUAL DEFENDANTS. THE REPORT SHALL BE RELEASED PUBLICLY AND PUBLISHED ON THE WEBSITES OF THE OFFICE OF COURT ADMINISTRATION AND THE DIVISION OF CRIMINAL JUSTICE SERVICES. THE FIRST REPORT SHALL BE PUBLISHED TWELVE MONTHS AFTER THIS SUBDIVISION SHALL HAVE BECOME A LAW, AND SHALL INCLUDE DATA FROM THE FIRST SIX MONTHS FOLLOWING THE ENACTMENT OF THIS SECTION. REPORTS FOR SUBSEQUENT PERIODS SHALL BE PUBLISHED EVERY SIX MONTHS THEREAFTER.